

was very common, but not exclusive, in the technical field concerned), but instead that a broad term should be interpreted with regard to all technically logical interpretations thereof. Based on this understanding of the limiting terms introduced into the claim the board came to the conclusion that the amendment to claim 1 as granted resulted in an intermediate generalisation.

In T 241/13 the board held that the description did not give a precise definition of the meaning of the expression "minimum intensity level"; the patentee's interpretation of this expression was not clearly excluded. However, that such an ambiguous expression as filed might be interpreted in a particular way was not sufficient to ensure the compliance of an amendment, based on that interpretation, with Art. 100(c) EPC which required a direct and unambiguous disclosure in the application as filed.

In T 1791/16 the board held that, in the interest of legal certainty, all technically reasonable interpretations of an ambiguous claim had to be considered. If one of those interpretations contained matter that extended beyond the content of the application as originally filed, it had to be concluded that there was added subject-matter.

f) Possible but undefined embodiments in dependent claim

According to the board in T 1688/12, the mere fact that a dependent claim encompassed a host of possible but undefined embodiments did not mean that the claim on which it depended had to be interpreted as compatible with all those embodiments.

1.4. Removal or replacement of features from a claim

1.4.1 Broadening of claim – permissible within the limits of the original disclosure

The deletion of a feature in a claim as filed may lead to a broadening of the claim. According to G 1/05 (OJ 2008, 271, referring to G 1/93, OJ 1994, 541), the applicant has a right to amend the claims so as to direct them to subject-matter not encompassed by the claims as filed. It is only after grant that the interests of third parties are further protected by Art. 123(3) EPC and the patentee's right to amend the claims is limited by the scope of the granted patent.

In T 133/85 (OJ 1988, 441) the board held that it was possible to broaden a claim (i.e. to extend the protection conferred by it) without contravening Art. 123(2) EPC, provided that the subject-matter which was within the claims for the first time as a result of the amendment was already disclosed within the content of the original application as filed (confirmed e.g. in T 732/00, T 273/04, T 1211/05).

In T 66/85 (OJ 1989, 167) it was pointed out that if a technical feature was deleted from a claim in order not to exclude from protection certain embodiments of the invention, the broadening of the claim did not contravene Art. 123(2) EPC 1973 as long as there was a **basis for a claim lacking this feature** in the application as originally filed (see also T 228/98).

In T.1724/08 the board held that the broadening of individual disclosed features, in particular those of an independent claim as filed, was not prohibited by Art. 76(1) EPC 1973; such amendments likewise required a direct and unambiguous disclosure in the earlier application as filed (see also T.1727/09).

1.4.2 Basis in the application as originally filed – gold standard

The requirement of Art. 123(2) EPC as applied to the claims means that it is only permissible to delete features from an independent claim if there is a clear and unambiguous basis for a claim lacking these features in the application as originally filed (T.1726/06, referring to T.66/85, OJ 1989, 167).

The board in T.755/12 pointed out that, although some tests such as the essentiality test (see in this chapter II.E.1.4.4 below) have been used as an **aid** in assessing the allowability of amendments, they could not replace the need to answer the question of what a skilled person would objectively have derived from the description, claims and drawings of a European patent application on the date of filing (G.3/89, OJ 1993, 117, see in this chapter II.E.1.3.1 "Gold standard: directly and unambiguously derivable" above). For further decisions highlighting that these tests are only tools and do not take the place of the "gold standard", see T.648/10 and the decisions cited in chapter II.E.1.4.4 b) and c).

In T.558/13, which concerned a divisional application, claim 1 according to the main request differed from claim 1 of the earlier application as filed in that the following feature had been omitted: "... a plurality of power sources are independently provided for each of the plurality of groups." Instead, claim 1 of the main request specified that the read out circuit comprised a plurality of sample and hold circuits. The board considered that the concept of the invention as consistently presented in the earlier application as filed required the provision of independent power sources. It accepted the appellant's argument that the shifted timing of the reset and sample and hold circuits provided the new technical advantage of "reducing a line noise caused by an external noise". Nevertheless, in the board's view, it was not sufficient to prove that the omitted feature was "not indispensable for achieving the effect of reducing line noise caused by external noise". Such reasoning did not take sufficient account of the **information conveyed by the earlier application as a whole**, which was primarily concerned with providing independent power sources and which only presented the additional technical effect caused by the shifted timing as a side issue. There was no room for speculation as to which features of the disclosed invention(s) might be omitted on further reflection, if there was no explicit or implicit disclosure of the generalised subject-matter remaining after the omission of these features.

1.4.3 Omission of a feature presented as essential

For cases in which the amendment consists of the replacement or removal of a feature from an independent claim, the boards occasionally apply the test of decision T.260/85 (OJ 1989, 105). In T.260/85 it was stated that it was **not** permissible to delete from an **independent claim** a feature which the application as originally filed **consistently presented as being an essential feature** of the invention, since this would constitute a

breach of Art. 123(2) EPC 1973. See also T.496/90, T.415/91, T.628/91, T.189/94, T.1032/96 (segment length parameters explained as essential), T.728/98 (OJ 2001, 319; concerning the deletion of the feature "substantially pure"), T.1040/98 (acoustic waveguide is described in the form of a bladder filled with a suitable material, throughout the description), T.1390/15 (consistent disclosure of solubility limit on the content of Mg and Cu) and T.1187/15 (consistent disclosure that heart rate can be derived from the blood pressure measurement).

In T.236/95 the board held that if the problem could not be solved without the features concerned, they could not be considered unimportant.

In T.784/97 the patent proprietor alleged that a prior art document would have made the skilled person aware that the disputed feature was not essential. The board held that whether or not a feature of an independent claim had to be seen as "essential" could **not be a question of the prior art disclosure**. Rather, what had to be decided was what a skilled person was taught by the originally filed documents.

In T.1515/11 the board confirmed that a feature could not be deleted from an independent claim if it had been consistently presented as an essential feature of the invention, since this would add subject-matter. In some cases there might be room for debate as to whether the application presents a feature as being essential to the invention or as being optional. However, there were also cases where, on purely formal grounds, the essentiality of a feature could not be doubted. One such case was where the applicant chose to include in an independent claim as filed a feature explicitly mentioning the problem, and affirming that the claimed subject-matter represents a solution to the problem. In particular, where a claim to a method included a feature explicitly defining that the method was carried out in a manner which solved the problem, to argue that this feature was not essential would be tantamount to arguing that in order to solve the problem, it was not essential to carry out the method in a way which solved the problem.

The board in T.648/10 confirmed the test set out in T.260/85. However, it observed that **the EPC does not require the use of any particular tests** when assessing whether subject-matter has been added. Instead, such tests are **tools** which may be helpful, in certain situations, in the assessment of whether subject-matter has been added.

1.4.4 The essentiality or three-point test

a) Decisions setting out, applying and distinguishing the test

In T.331/87 (OJ 1991, 22) the board, building on T.260/85 (OJ 1989, 105) set out a three-point test. The board held that the replacement or removal of a feature from a claim might not be in breach of Art. 123(2) EPC 1973 if the skilled person would directly and unambiguously recognise that (1) the feature was not explained as essential in the disclosure, (2) it was not, as such, indispensable for the function of the invention in the light of the technical problem it served to solve, and (3) the replacement or removal required no real modification of other features to compensate for the change (frequently applied until 2012, see e.g. T.708/07, T.775/07, T.2359/09, T.747/10; more recently

applied in T 1906/12). This test is sometimes referred to as the essentiality test (see e.g. T 2359/09, T 2599/12, T 2489/13). Note that the Guidelines (H-V, 3.1 – March 2022 version) contain a modified three-point test.

In T 404/03 the board noted that, as far as the disclosure of a group of features was concerned, as distinguished from their scope, the generalisation of a feature in a claim and the isolation of features from embodiments in the description essentially both involved a deletion of a feature, namely the specific feature and the remaining features of the embodiment respectively. The board therefore considered that these cases could be subject to the same criteria as a pure deletion, and hence, in principle, the three-point test. Rather than requiring a specific statement or suggestion in the original disclosure, the three-point test was more generous to the applicant because it essentially allowed the deletion of a feature if the skilled person realised from the common general knowledge in that field that the feature had nothing to do with the invention. Moreover, in the board's view, the cases of deletion of features and addition of features had to be distinguished with respect to the allowability of amendments under Art. 123(2) EPC 1973, since the former only removed elements that were originally disclosed and hence might be judged by a skilled person to be inessential to the invention, whereas the latter added new elements lacking any basis whatsoever in the original disclosure.

In T 2300/12 the board held that the purpose of the essentiality test was to ascertain whether the replacement or removal of a feature in an originally filed independent claim resulted in an extension beyond the content of the application as originally filed. In the case at issue, however, the granted claim was for a process, whereas there had been no such process claim in the set of claims originally filed. For that reason alone, the essentiality test could not be directly applied to establish whether there had been such an inadmissible extension.

b) Mere aid in assessing the allowability of amendments

The board in T 1472/15, citing T 2311/10 and T 1852/13, held that, contrary to how T 331/87 had often been misinterpreted, the "essentiality test" was not absolute vis-à-vis the "gold standard" and could merely be used as an aid in ascertaining what had been originally disclosed (see also T 648/10, T 755/12, T 2095/12, T 2599/12, T 46/15, T 1420/15, T 85/16 and T 1189/16). It is the requirements of the "gold standard", which ultimately must be met when assessing **any** amendment for its compliance with Art. 123(2) EPC and (by analogy) Art. 76(1) EPC (T 838/16 with reference to T 1852/13 and T 755/12; see also T 1462/14, T 71/19 and T 1270/20). The "essentiality test" cannot take the place of the gold standard (T 172/17).

c) No longer considered appropriate

According to T 1365/16, in the more recent jurisprudence of the boards of appeal, the so-called "essentiality test" (as set out in T 331/87, see point a) above) is no longer considered appropriate (cf. e.g. T 1852/13).

As highlighted by numerous decisions, it is the requirements of the "gold standard", which ultimately must be met when assessing **any** amendment for its compliance with Art. 123(2) EPC and by analogy with Art. 76(1) EPC (T 838/16 with reference to T 1852/13 and T 755/12; see also T 1462/14, T 1869/17 and T 71/19). Several decisions have concluded that the essentiality test set out by decision T 331/87 was moot and should not be applied (T 2311/10, regarding intermediate generalisation; T 2599/12, T 830/16, T 1365/16, T 437/17; see also the further decisions cited in this chapter in II.E.1.4.4e)).

d) Necessary but not sufficient condition

In T 437/17 the board, in line with several decisions such as T 1472/15 and T 1852/13, held that fulfilling the three criteria of the "essentiality test" as set out in T 331/87 (OJ 1991, 22) was a necessary requirement but not a sufficient one for compliance with Art. 123(2) EPC. The board further underlined that, in any case, this test could not replace the "gold standard" and should not lead to a different result than when applying the "gold standard" directly. The board agreed with the finding in T 2599/12 that the "essentiality test" set out in T 331/87 was moot and should not be applied.

e) Decisions criticising the essentiality or three-point test

In T 910/03 the board criticised the second condition of the essentiality test (omitted feature not, as such, indispensable for the function of the invention in the light of the technical problem it serves to solve). The board criticised this approach in the light of G 2/98 (OJ 2001, 413) for being tantamount to making a distinction between technical features which were related to the function and the effect of the invention and, on the other hand, technical features which were not.

In case T 2311/10 which concerned an intermediate generalisation, the board expressed the view that the three-point or essentiality test was unhelpful or even misleading (see also T 1840/11, T 2095/11, T 2095/12). In particular, the board highlighted, with regard to the second criterion, that the test of T 331/87 necessarily had to relate to the problem derivable from the application as it concerned the disclosure of the application. This was however not always observed.

In T 1852/13 the board concluded that the three-point essentiality test developed in T 331/87 should no longer be used (similarly T 830/16): in view of that earlier decision's wording ("may not"), logic alone dictated that it could not be congruent with the "gold standard" (G 2/10). Indeed, even the board that had developed the test had acknowledged that it might be met, yet Art. 123(2) EPC still infringed. Although the essentiality test could be a useful indicator in certain cases, the "gold standard" was the only test that counted (see T 755/12). Moreover the Enlarged Board, in G 2/98, ruling on when a priority claim was valid, had rejected the essentiality-based approach taken in T 73/88 (Snackfood), laying down instead a condition analogous to the "gold standard", and its concern that evaluations of essentiality might be arbitrary applied to amendments too. The board therefore agreed with T 910/03 that the conclusion to be drawn from G 2/98 was that the essentiality test should no longer be applied. Another advantage of the "gold standard"